

JURIDICAL SCIENCES

THE RIGHT TO DEFENSE IN CRIMINAL PROCEEDINGS OF THE FEDERAL REPUBLIC OF GERMANY AND UKRAINE

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ABSTRACT

The article analyzes the basic principle of criminal justice, the right to defense in criminal procedure of Ukraine and the Federal Republic of Germany. It has been established that every suspect (accused) of committing a criminal offense has the right to defense, which is connected with the formal initiation of criminal proceedings, or notification to a person of suspicion (indictment) of committing a criminal offense and acquiring the status of a suspect (accused). The guarantee of ensuring the right to defense is the right of a person to defend himself with the help of a professional defense attorney. A comparative analysis of the legislation of Ukraine and the legislation of the Federal Republic of Germany regarding a person's access to legal help was carried out. The main problematic issues regarding the participation of a defense attorney in criminal proceedings are highlighted.

Keywords: attorney, lawyer, principles of criminal procedure, right to defense, guarantees of ensuring the right to defense, criminal procedure.

Ensuring the right to defense is one of the fundamental principles underlying a democratic state's judicial system. The right of the suspect, the accused, the convicted and acquitted persons should not be confused with the right of other parties to the criminal proceedings (victim, civil plaintiff, civil defendant, etc.) to protect their legitimate interests infringed by any wrongful or illegal actions. The accused defends himself/herself against the accusation; in this sense, he/she is a special participant in the process since no other person is accused of committing the crime and no other person has to defend himself against such an accusation.

There are three concepts relating to the accused in the German criminal proceedings: a person against whom an investigation is conducted on suspicion of committing a crime – *Beschuldigter* is the accused in the broad sense existing throughout the entire process, including the suspect (*Verdächtiger*) (the Criminal Procedure Code of the Federal Republic of Germany, hereinafter – CPC FRG, does not contain a specific article dealing with the concept of a suspect in criminal proceedings); following the indictment and submission of the case to the court the same person is referred to as *Angeschuldigter* (CPC FRG § 157), in court – *Angeklagter* (CPC FRG § 157). CPC FRG regulates solely the interrogation of the accused [1, p. 717-718].

Article 2 of the Criminal Procedure Code of Ukraine (hereinafter – CPCU) stipulates that the objectives of criminal proceedings are to protect a person, society and the state from criminal offenses, to protect the rights, freedoms and legitimate interests of the participants in criminal proceedings, as well as to ensure a quick, complete and impartial investigation and trial, in order that anyone who has committed a criminal offense was prosecuted to the extent of their guilt, no innocent person was charged or convicted, no person was subjected to unreasonable procedural coercion, and that due process of law was applied to each participant in criminal proceedings [2].

It is noteworthy that the CPC FRG does not contain rules that directly regulate the objectives of the German criminal proceedings (*Strafverfahrensrecht*).

These tasks are solved and studied in theoretical works where the following objectives of the criminal proceedings of the Federal Republic of Germany are established: 1) exposing and punishing the guilty thereby protecting society from criminal encroachments; 2) inadmissibility of bringing to legal responsibility and convicting the innocent; 3) the least possible intervention of state bodies in the sphere of personal freedom of the accused; 4) ensuring the rights and freedoms, honor and dignity of the accused like any other person in the rule of law state; 5) exclusion of any police or state abuses by criminal prosecution bodies [3, p. 388].

Thus, in both Ukrainian and German law, one of the criminal procedural activity's key directions, which by its nature is opposed to the function of the prosecution, is the protection of the rights and legitimate interests of persons suspected or accused of committing a criminal offense in particular criminal proceedings.

In fact, the initial investigative steps in the German criminal proceedings mean the actual institution of proceedings in a criminal case. The grounds for this are the official discretion of the police and the prosecutor's office, individuals' complaints, including anonymous ones, police, local and judicial authorities' reports, complaints in cases of private prosecution. In addition to the above-mentioned grounds for starting an investigation, there should also be the reason thereto, which is a simple suspicion of committing a crime.

The subjective assessment of an officer who has the authority to institute the prosecution plays an additional role for the decision to initiate an investigation.

Three types of defense can be distinguished in the Ukrainian criminal proceedings depending on who acts as the subject of the function of defense.

This primarily includes the *defense carried out by the suspect (accused) in person*. In the criminal proceedings, any person involved in the case as a suspect

(accused) is granted a wide range of rights to protect his/her legal interests and to fully or partially refute the suspicion of committing a crime reported against him/her or an indictment, to identify circumstances that acquit him/her, exclude or mitigate his/her responsibility, as well as to protect his/her personal and property rights. All procedural actions and relations of this person whereby he/she exercises his/her rights, are an integral part of the function of defense. This type of defense occurs in any criminal proceedings with is a suspect (accused) irrespective of other persons' participation in the process who are called to provide legal assistance to the suspect (accused).

The second type of defense is provided by the investigator, prosecutor or court. The criminal procedure law requires the prosecutor, the head of the pre-trial investigation body, and the investigator to comprehensively, completely and impartially investigate the circumstances of the criminal proceedings, to identify both the facts that incriminate and those that exonerate the suspect, the accused, as well as the facts that mitigate or aggravate the possible punishment, provide them with a proper legal assessment and ensure the adoption of lawful and impartial procedural decisions. (Article 9 of CPCU). In addition, the prosecutor (CPC FRG uses the term "*Staatsanwaltschaft*" – the prosecutor's office, not "*Staatsanwalt*" – public prosecutor; only § 227 of the CPC FRG mentions several prosecutors in the process) is authorized to terminate any illegal restrictions on the rights of the suspect (accused), annul the decisions of investigative bodies that infringe the rights and legitimate interests of the suspect (accused) (Article 36 of the CPCU, §§ 152, 160, 167 of the CPC FRG) or may refuse to prosecute in court stating the reasons for such refusal in his/her decision if "the charges brought against the person have not been corroborated (Article 340 of the CPCU); it should be noted that under § 156 of the CPC FRG, the prosecutor cannot withdraw of the charges if the main court proceedings have started; the prosecutor has the powers to withdraw of the charges prior to the opening of the main court proceedings [4, p. 962]. In this case, it can be observed that the institution of refusal of prosecution in the main court proceedings is actually absent in the CPC FRG; it is possible to appeal the court's decision.

In the process of evaluating the evidence collected by the bodies of inquiry and pre-trial investigation, the court or judge must ascertain whether it was obtained from the sources prescribed by the law and under the procedure prescribed thereby.

Procedural actions and relations carried out by pretrial investigation bodies, the prosecutor's office and the court pursuant to the criminal procedure rules, in our opinion, should be considered as a type of protection of the rights and legitimate interests of the suspect (accused), as participation in the implementation of the function of defense in criminal proceedings.

In the legal literature, the above-mentioned actions and relations of these bodies are not frequently regarded as the exercise of defense due to the fact that each procedural function should belong to only one subject of the process.

It is believed that by this approach, one person cannot participate in the implementation of two functions simultaneously, which, however, can hardly be justified. Procedural functions are the areas of criminal procedural activity being determined by the main tasks of criminal justice. They should not be confused with the procedural interests of particular persons. The same subjects of the process sometimes contribute to the performance of different functions, and, simultaneously, the same function finds its manifestation in the actions by a number of persons occupying different procedural positions. Investigative bodies, collecting evidence against a suspect (accused) that aggravate his/her guilt, drawing up an indictment, etc., perform an accusatory function; but collecting evidence that mitigates the accused person's guilt, changing the charge to a less serious one, ensuring the rights of the suspect (accused) and protecting his/her legitimate interests, they simultaneously perform actions and enter into procedural relations that are part of the defense in criminal proceedings. The same can be said about the prosecutor, the investigating judge and the court. This type of defense actually occurs in all criminal proceedings, where a particular person is notified of a suspicion or an indictment against him/her in respect of which it is brought to court.

The third type of defense is carried out by a defender – defense counsel (attorney) (*Verteidiger*).

The law distinguishes between the participation of a defense attorney in criminal proceedings by agreement and by appointment.

There are also two types of participation of the appointed defense counsel: mandatory and at the request of the suspect (accused).

Under Articles 45, 51 of the CPCU, a defense attorney is invited by the agreement of the suspect or the accused, their legal representatives, the convicted, the acquitted, the person in relation to whom the application of coercive measures of a medical or educational nature are anticipated or the question of their application has been decided, as well as the person in relation to whom the issue on extradition to a foreign state (extradition) is under consideration, as well as by other persons acting in the interests, at the request or with the subsequent consent of the above-mentioned persons. Thus, the CPCU grants the right to invite a defense attorney under the agreement to a fairly wide range of persons.

Pursuant to § 137 of the CPC FRG, either the accused himself or his legal representative can invite a defense attorney under the agreement.

The following should be noted concerning the participation of the appointed defense counsel: under Article 49 of the CPCU, an investigator, prosecutor, investigating judge or court is obliged to ensure the participation of a defense counsel in criminal proceedings in cases, where:

- 1) pursuant to the requirements of Article 52 of the CPCU, the participation of a defense counsel is mandatory but the suspect, the accused have failed to engage a defense counsel;

- 2) the suspect, the accused has submitted a request to engage a defense counsel, but due to lack of funds or

other objective reasons is unable to engage the council on his/her own;

3) the investigator, prosecutor, investigating judge or court has decided that the circumstances of the criminal proceedings require the participation of a defense counsel but the suspect, the accused have failed to engaged him/her.

The defense counsel may be engaged by an investigator, a prosecutor, an investigating judge or court in other cases provided for by the law regulating the provision of free legal aid.

Pursuant to § 141 of the CPC FRG, a defense counsel shall be appointed to the accused if the latter directly requests it or if the participation of a defense lawyer in criminal proceedings is mandatory (§ 140 of the CPC FRG) [4, p. 836].

The criminal procedural law of Ukraine prohibits an investigator, prosecutor, investigating judge, judge or court from denying the admission of a defense counsel under an agreement on the pretext that a designated defense attorney is participating in the case. In this event, the latter is replaced by a defender under the agreement. The suspect (accused) has the right to invite a defense attorney of his/her choice to participate in the case if the latter has the opportunity to participate in the process without a long delay in the investigation or trial of the case. Instead, § 144 of the CPC FRG stipulates that along with the defense counsel who was invited under the agreement, a defense counsel by appointment may also participate in the number of no more than two persons [5, p. 2831].

The defender does not have the right to refuse to perform his duties after his engagement save in the following cases:

1) where there are circumstances that exclude his/her participation in criminal proceedings under the CPCU (Article 78 of the CPCU);

2) disagreement with the suspect, the accused regarding the method of defense chosen by him/her, save in cases of mandatory participation of the defense counsel;

3) intentional non-fulfillment by the suspect, the accused of the terms of the agreement concluded with the defense counsel, in particular in cases of systematic failure to comply with legal advice of the defense counsel, violation of the requirements of this Code, etc.;

4) where he/she motivates the refusal by the lack of proper qualifications to provide legal assistance in a specific proceeding, which is particularly difficult.

The right of a defense attorney to withdraw from participation in criminal proceedings is regulated somewhat differently by the CPC FRG. Thus, pursuant to § 145 of the CPC FRG, the defense attorney can simply refuse to defend the accused without motivating his reluctance to do so [5, p. 2833]. It should be also kept in mind that a defense attorney must refuse to participate in the criminal proceedings where there are grounds for removing him/her from the case (§§ 138a, 138b).

It is possible to replace a defender with another one only at the request or with the consent of the suspect or accused.

Thus, where the suspect or the accused expressed a desire to have a particular defense counsel, the replacement of the latter by another one without the suspect's (accused person's) consent and in the absence of the information on the impossibility for the chosen defense attorney to participate in the case is a violation of the right to defense.

Exercise of the right to defense is not merely a manifestation of democracy, but also a necessary condition for the proper administration of justice. Improvement of judicial activity is impossible without improvement of defense and further strengthening of the principle of ensuring the right to defense. This right is one of the principal institutions that guarantees compliance with human rights and freedoms standards, characterizing the situation with the formation of the rule of law state in Ukraine and the level of its legal system's democratization.

The right of the suspect (accused) to defense occupies an important place among the many and varied rights of a person and a citizen.

It consists in the fact that the law:

- grants the suspect (accused) as a participant in the process such a set of procedural rights, which allows him to personally defend himself/herself in court against an accusation of committing a criminal offense and protect his/her legitimate interests (Article 42 of the CPCU);

- entitles the suspect (accused) to use the aid of a defense counsel, and in certain cases recognizes the participation of a defense counsel as mandatory; (Articles 45, 48, 52 of the CPCU. §§ 137, 138, 140 of the CPC FRG)

- entrusts the investigator, prosecutor, investigative judge and the court with the duty to explain to the suspect (accused) his/her procedural rights and provide him/her with the possibility of exercising these rights and defending against suspicion and accusation, as well as protecting his/her personal and property rights (this can be called official protection) [6, p. 44].

Providing the suspect (accused) with the right to defense must be consistently implemented at all stages of the criminal proceedings as an important guarantee of establishing the truth and delivering a lawful, well-founded and fair judgment. The right of the suspect (accused) to defense includes the right to defend himself/herself against suspicion and accusation, as well as the right to protect his/her personal and property interests; in addition, the investigator, prosecutor, investigating judge and the court are obliged to provide the accused with a) the opportunity to defend himself/herself in accordance with the remedies and methods established by law against the suspicion or accusation brought against him/her and b) protection of his/her personal and property rights.

Thus, the entire set of rights and guarantees, which are part of the concept of the principle of the right to defense, consists of two interrelated elements. The first includes the entire set of rights that belong to the suspect (accused) being covered by the general concept of the right to defense. The second part encompasses legally regulated activities of the court, the prosecutor's

office, and the investigator, aimed at ensuring the rights and legitimate interests of the suspect (accused).

It is the right, not the duty of the suspect (accused) to defend himself/herself against suspicion or accusation. He/she may testify and use this as an important defense tool or he/she may equally refuse to testify. The suspect (accused) may plead guilty or plead not guilty, he/she may actively defend himself/herself or refrain from taking measures to do so. However, passive defense or unwillingness to defend oneself at all, as a rule, cannot be used against the accused, far less serve as proof of his/her guilt. Thus, the principle of ensuring the right to defense is broader than the concept of the right to defense, since the principle of ensuring the right to defense also includes, as already mentioned, in addition to the exercise by the suspect (accused) or his/her defender of their rights, the activities of other participants in the process regarding the exercise of the rights and legitimate interests of the suspect (accused) in order to correctly resolve the case and pass a lawful and well-founded judgment.

Ensuring the protection of the accused's personal and property rights by the prosecutor and the court in the Federal Republic of Germany is the responsibility of the latter and includes the duty:

1) not to carry out actions that degrade the dignity of the accused or endanger his/her health (§§ 81d, 136a of the CPC FRG; Articles 11, 240 of the CPCU);

2) to take measures to protect the property of the accused (§§ 111b, 111c, 111f of the CPC FRG; Article 378 of the CPCU);

3) to notify his wife or other relative about the arrest of the accused and his whereabouts and/or his place of work (§ 114b of the CPC FRG; Article 213 of the CPCU);

4) not to use prohibited methods of interrogation (§ 136a of the CPC FRG; Article 11 of the CPCU);

5) to allow a legal representative to participate in the proceedings (§ 149 of the CPC FRG; Article 44 of the CPCU); [7, p.p. 973, 653, 753, 1119].

The criminal procedure rules of Germany and Ukraine on ensuring the right to defense can be fully implemented only if the investigative bodies, the prosecutor, the investigating judge and the court fulfill duties entrusted thereon of a comprehensive and objective investigation of all the circumstances of the criminal proceedings. Following the instructions of the law, the state bodies that consider the case are obliged to investigate and take into account the facts that testify both in favor and against the suspect (accused).

Further, the convicted (*Verurteilte*) and acquitted persons (*Rechtfertiger*) also have the right to defense. They are interested in securing their personal and property rights. These are legitimate interests, which are subject to the right to defense and this right must be ensured. This does not apply to illegal interests and illegal means and methods of protection against suspicion and accusation and unlawful protection of personal and property rights [8, p. 814-815].

Violation of the right to defense always amounts to a significant violation of the requirements of the criminal procedure law (Article 412 of the CPCU) and is one of the most common grounds for annulment of a

verdict and other decisions in criminal proceedings if it has deprived of or limited the suspect, accused, defendant or his defense counsel the exercise of this right and prevented or could have prevented the court from making a lawful and well-founded judgment.

The list of procedural rights granted to the suspect (accused) is fairly extensive (Article 42 of the CPCU).

The right to defense is one of the most important guarantees of establishing the truth in criminal proceedings, a manifestation of humanism and democracy in criminal proceedings.

The right to defense is perceived as the suspect's (accused's) opportunity to protect his/her rights and legitimate interests by exercising a number of procedural rights. Procedural means of protection are stipulated in the criminal procedure codes of both the Federal Republic of Germany and Ukraine as specific means by which procedural rights to defense are exercised. For example, a convicted person has the right to appeal the judgment. The procedural means by which he/she is able to exercise this right is a complaint. The defendant is entitled to the right to participate in court debates — the procedural tool here is a defense speech (§§ 258, 314, 315, 335, 336 of the CPC FRG; Articles 364, 393, 425 of the CPCU) [4, p.p. 1440, 1598, 1600, 1660, 1662; 9, pp. 602, 635, 667].

Taking the above into account, it can be concluded that each procedural right corresponds to the procedural means of its implementation. On the other hand, a procedural remedy cannot exist without the corresponding right to defense.

The suspect (accused) is the subject of the right to defense and all the specific rights, which the law provides him for defense against prosecution derive from this fundamental right. The right to defense is dispositive: subjects thereof are not obliged to defend themselves, but may do so.

The rights of the suspect (accused) to defense correspond to the duty of the person conducting the investigation, the prosecutor, the investigating judge, and the court to provide the suspect (accused) with the opportunity to defend himself/herself by the remedies and methods established by law.

Summarizing the above said, it may be concluded that ensuring the right to defense is a broader concept than the concept of the "right to defense". The right to defense is a set of all procedural rights that the law provides for protection against the reported suspicion, as well as against the accusation, and which he/she, i.e. the suspect (accused) uses to deny the suspicion (accusation) and provide arguments and evidence for his/her acquittal or mitigation of his/her responsibility. This right also provides for the activities of other participants in the proceedings on implementation of the rights and legitimate interests of the suspect, the accused, the convicted and the acquitted persons in order to properly resolve the criminal proceedings and pass a lawful and well-founded decision.

Ensuring the right to defense is a manifestation of concern not only for the interests of the suspect, accused, convicted or acquitted persons, rather it works in public and legal interests as a guarantee of the proper resolution of criminal proceedings. Effective protection

of the rights of these participants in the process is in line with the interests of society and the state, which strives for every citizen to maximally use and actively exercise their constitutional rights. It should be considered as giving citizens the opportunity to protect their interests, thereby actively contributing to solving the tasks of criminal justice, both in Ukraine and Germany.

Thus, an important feature of the rights and legal interests of the accused in the German criminal proceedings is their provision by legal guarantees established in the current branch legislation in accordance with the Fundamental Law. In the Federal Republic of Germany, the rights of citizens provided for by the law are ensured by the substantive and procedural guarantees established therein, which are of significant interest for the theory and practice of criminal justice in Ukraine.

The criminal proceedings systems of Ukraine and the FRG, although having their national differences, are structurally and functionally built in such a way that the subjective rights of the accused at all stages of the process correspond to particular procedural duties of the state bodies conducting the criminal proceedings. The accused's rights are procedurally combined with the duty of the investigative bodies, the prosecutor's office, and the court to file an indictment within the time limits established by law, to ensure the participation of a defense counsel in the case and the possibility for the suspect (accused) to familiarize himself/herself with the case materials.

The criminal procedural legislation of Ukraine and the Federal Republic of Germany obliges the investigative bodies, the prosecutor's office and the court to provide an opportunity for a person not only to defend himself/herself against the charges brought against him/her, but also to protect personal and property

rights, i.e. to create the necessary conditions for the realization of the right to defense. This does not only mean that they have no authority to prevent the suspect (accused) and his defense counsel from exercising the right to defense, but must also take measures to ensure that the suspect (accused) and his defense counsel exercise this right in accordance with the procedure established by law.

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